

22NWCV01428 22NWCV01428

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C08%2F21%2F2026

Source SHA-256: 91c4061e5f006e08f15171a7b0012eec77246ada1fb6d67de7adeaecaeece9fe

Case Number: 22NWCV01428 Hearing Date: August 21, 2026 Dept: P

MICHELLE BAIK, ET AL. v. KAISER FOUNDATION HOSPITALS, ET AL.

CASE NO.: 22NWCV01428

HEARING: 08/21/2026 @

9:30 AM

#11

TENTATIVE ORDER

Petitioner Michelle Baik's Petition to Approve Minor's
Compromise with Special Needs Trust is GRANTED.

Moving party to give notice.

Plaintiff Michelle Baik (Petitioner or Plaintiff) petitions
for approval of minor's compromise with a special needs trust.

Background

On November 28, 2022, Plaintiff filed this action against
Defendants Kaiser Foundation, Kaiser Foundation Health Plan, Inc., Southern
California Permanente Medical Group, and Does 1 through 100, inclusive. The
complaint alleges that on September 1, 2021, Baik engaged Defendants' services
for treatment and care related to her pregnancy. (Complaint, ¶ 9.) The
complaint alleges Defendants "negligently and unlawfully failed to properly and

correctly diagnose, render care and treatment, to perform proper surgery on, and prescribe and administer medicine and drugs for the condition of [Baik] and her child" resulting in her child, Kira Kim, being born with hypoxic ischemic encephalopathy. (Complaint, ¶¶ 11-12.) The complaint asserts two causes of action: (1) negligent infliction of emotional distress against all Defendants brought by Baik and (2) negligent infliction of emotional distress brought by Diego Kim.

On June 12, 2025, the Court granted the parties' stipulation to consolidate this matter with the related civil action, Case No. 23NWCV02091. This action is designated the lead case.

This is a continuation. On July 30, 2026, this Petition first came on for hearing. The Court continued the hearing on this Petition to permit Petitioner to correct deficiencies in the proposed order.

Discussion

On July 30, 2026, the Court found that the proposed settlement proceeds to Claimant are reasonable and that the proposed Special Needs Trust instrument complied with Probate Code Section 3604, subdivision (b). (Order, 7/30/26.) The Court additionally approved the bond amount and the additional requests for relief. (Order, 7/30/26.) The Court continued this hearing to permit Petitioner to correct certain omissions from the proposed order. (Order, 7/30/26.)

On July 31, 2026, and on August 12, 2026, Petitioner filed Proposed Orders and a Supplement to Petition. The Court notes that the Proposed Order filed on August 12, 2026 appears to only change the characterization of Claimant in Section 3 of the Petition from (a) a minor to (b)(2) a " 'person with a disability' within the meaning of Probate Code section 3603 who is...[a] minor described in Probate Code section 3603(b)(3)." (Pet., ¶ 3.)

Based on the findings made in the Court's Order on July 30, 2026 together with the corrected Proposed Order, the Court approves this compromise and disposition of proceeds.

Accordingly, Petitioner's Petition to confirm minor's compromise with special needs trust is GRANTED.